

**IN THE LAHORE HIGH COURT, MULTAN
BENCH MULTAN
JUDICIAL DEPARTMENT**

I.C.A. No.187/2013

**Government of Punjab & Another
Versus
Mohammad Yousaf etc.**

JUDGMENT

DATE OF HEARING:	07.01.2015.
APPELLANT BY:	Rana Muhammad Hussain, Assistant Advocate General for the appellants alongwith Mr. Tariq Mehmood Awan, Assistant Commissioner, Sadar, D.G., Khan.
RESPONDENT BY:	Mr. Abdur Rashid Sheikh, Advocate.

Ch. Muhammad Iqbal, J:- Through this I.C.A., the appellants called in question the order dated 20.05.2013 passed by the learned Single Judge-in-Chamber whereby the Writ Petition of the respondent was allowed.

2. Brief facts of the case are that the Board of Revenue, Punjab, Lahore vide letter dated 08.11.2004 allowed to fill up 13 posts of Patwaris in Dera Ghazi Khan District. Accordingly, the said posts were advertised in Daily Newspapers on 13.01.2005. In response to said advertisement, the petitioner and other candidates had applied for the same and after scrutinizing the documents, the date of interview was fixed for 10.03.2005 and then 29.03.2005, in the meanwhile the Government of Punjab had imposed ban on recruitment vide letter dated 29.03.2005, as such, the

recruitment process was postponed. In the year 2006, Government of Punjab lifted ban on general recruitment vide letter dated 17.01.2006. Since the numbers of posts were increased, so it was decided to obtain fresh applications. Accordingly, all the posts were published in the daily newspapers, therefore, again applications were invited for the posts of Patwaris through publication, the petitioner and other persons also applied for the same and the date of interview was fixed for 27.04.2006. In the meanwhile the Board of Revenue vide letter dated 24.04.2006 has informed that the clarification has been sought from the Regulation Wing and advised not to start recruitment process. Accordingly, the recruitment process was stopped. Later on, the S&GAD has informed the deadline for completion of recruitment process upto 30.03.2007. In compliance of the letter issued by S&GAD, the date of interview for the posts of Patwaris was fixed for 30.03.2007 and recruitment process was completed on 30.03.2007. The appointment letters were issued to the successful candidates but the Secretary (Revenue), Board of Revenue, Punjab, Lahore vide his letter dated 11.04.2007 had declared the proceedings of the recruitment committee dated 30.03.2007 null and void due to not presence of DDO (Revenue)/DDO (Rev.), D.G. Khan. The said letter has been challenged through Writ Petitions Nos.1850/2007, 1878/2007 & 1880/2007.

Thereafter, the petitioner and others filed representation to the higher authorities for completing the recruitment process in Tehsil Dera Ghazi Khan but without deciding the said representation, the present appellants started de-novo process inviting fresh applications for the recruitment of Patwaris and during that period, the petitioner became over age. On 20.08.2007, the Executive District Officer (Revenue), D. G. Khan rejected the representation/request/application of the petitioner being over age. The petitioner filed writ petition No.17/2008 in which petitioner challenged the order dated 20.08.2007. The appellants/respondents appeared and filed parawise comments and after hearing the parties, the learned Single Judge-in-Chamber allowed the Writ Petition of the respondents/petitioner, hence this Intra Court Appeal.

3. The learned counsel for the appellants submits that while passing the impugned order dated 20.05.2013, the learned Single Judge-in-Chamber has not considered the law and facts of the case and passed the order in slipshod manner. Further submits that the learned Single Judge-in-Chamber has not appreciated the law, rules in its true perspective, therefore, the impugned order is illegal on the face of it. Further adds that the recruitment process has been completed and all the advertised posts were filled, the impugned order is

against the canon of justice, therefore, instant ICA may kindly be allowed.

4. Learned counsel appearing on behalf of the respondent submits that the impugned order passed by the learned Single Judge-in-Chamber is in accordance with law. Further submits that the respondent applied for the post of Patwari and thereafter the process of appointment was delayed due to the act of the Government functionary, as such, the order passed by the learned Single Judge-in-Chamber is not to be interfered. Further adds that the Intra Court Appeal is hopelessly time barred. The appellants vide order dated 18.12.2013 appointed the respondent in compliance of order passed by this Court, which is impugned before this Court. Therefore, this ICA may kindly be dismissed.

5. We have given our anxious consideration to the arguments of the learned counsel for the parties and have examined the record, appended herewith.

6. The learned Single Judge-in-Chamber passed the impugned order dated 20.05.2013 whereas Intra Court Appeal has been filed on 12.06.2013 in this way the appeal is barred by two days and under Article 151 of the Limitation Act, prescribed time is 20 days and under section 4 of the Law Reforms Ordinance, 1972, the period of limitation starts from the date of decree or order. The appellants were duty

bound to challenge the impugned order within the stipulated/prescribed time, period of limitation i.e. within 20 days, as such, ICA is time barred. The Article 151 of Limitation Act is as under:-

<i>Description of Appeals</i>	<i>Period of limitation</i>	<i>Time from which period begins to run</i>
17* * * 151. From a decree or order of ¹⁸ [a High Court] in the exercise of its original jurisdiction.	* * Twenty days	* * * The date of the decree or order.

Reliance is placed on the case reported as Ghulam Hussain Ramzan Ali Versus Collector of Customs (Preventive), Karachi (2014 SCMR 1594), which is as under:-

“It is now a well settled law that there is distinction between a void order and a voidable order and it has been held by this Court that party could not sleep over to challenge a void order and it was bound to challenge the same within the stipulated/prescribed time period of limitation from the date of knowledge before the proper forum in appropriate proceedings. In this connection reference may be made from the judgment of this Court reported as "Messrs Blue Star Spinning Mills Limited v. Collector of Sales Tax and others (2013 SCMR 587)", wherein this Court held as under:--

"The Court specifically adverted to the arguments raised by the petitioner's learned counsel that no limitation runs against a void order and held that this is not an inflexible rule; that a party cannot sleep over to challenge such an order and that it is bound to do so within the stipulated/prescribed period of limitation from the date of knowledge before the proper forum in appropriate proceedings. This is in line with the law laid down by this Court in Chief Settlement Commissioner v. Muhammad Fazil (PLD 1975 SC 331) wherein it is observed that "direct proceedings for having a decision invalidated or set aside may be either by way of

appeal, revision or review, initiated by the affected party, in accordance with the relevant law; or they may take the form of suo motu recall of the order by the Court or authority which made it or, lastly action to be taken by way of a regular suit before a Court of general jurisdiction for a declaration as to the invalidity of the order." Similarly in *Muhammad Raz Khan v. Government of N.W.F.P.* (PLD 1997 SC 397) at page 400 this view was reiterated in terms as follows:-

"We earnestly feel that unless certain constraints apply against right of challenging void order specially relatable period of knowledge, the same may create complication leading to dangerous results. Principle of justice and fair play does not help those who were extraordinary negligent in asserting their right and despite becoming aware about alleged void order adverse to their interest remain in deep slumber. Therefore, according to our considered opinion, facility regarding extension of time for challenging order cannot be legitimately stretched to any length of unreason period at the whims, choices or sweet will of affected party. Thus, order termed as nullity or void could at best be assailed by computing period of limitation when he factually came to know about the same. When a person presumes that adverse order is a nullity or totally devoid of lawful authority and ignores it beyond the period specified by law of limitation, then he does so at his own risk. Therefore, in all fairness terminus a quo will have to be fixed, the date of knowledge alleged void order; which too must be independently established on sound basis. in this behalf we derive strength from the observations contained in PLD 1975 Baghdad-ul-Jadid 29 (Syed Sajid Ali v. Sayed Wajid Ali) and 1978 SCMR 367 (S. Sharif Ahmad Hashmi v. Chairman Screening Committee."

7. The competent authority vide letter bearing Endst. No.2195-2203/HC(G) dated 18.12.2013 appointed the

respondents, as such, the order in question in this Intra Court Appeal has already been complied with, therefore, this appeal has become infructuous.

8. The upshot of the above discussion is that this ICA is time barred and the order has already been complied with, as such, we are not inclined to interfere in the impugned order, which is unexceptionable. This appeal, therefore, being meritless is **dismissed**.

(Ali Akbar Qureshi)
Judge

(Ch. Muhammad Iqbal)
Judge

APPROVED FOR REPORTING

Judge

Judge

MFH (PA)